



CNY Regional Immigration Assistance Center

CRIMINAL CASE INTAKE FORM

STEP 1: DOCUMENTS WE NEED IN EVERY CASE

Fingerprint RAP Sheet

(Repository inquiries are generally insufficient)

☐ Enclosed ☐ Sent Previously

All accusatory instruments

(Must include supporting affidavits/police reports)

☐ Enclosed ☐ Sent Previously

All immigration documents

E.g. green card, work permit, USCIS receipt or passport visa

☐ Enclosed ☐ Sent Previously

If any documents are unavailable, please explain (we may be able to help)

STEP 2: CASE & CLIENT INFORMATION

ATTORNEY INFORMATION

Attorney Name: _____

Email: _____

Affiliation: _____

Tel: _____

(Name of PD, ACP, etc.)

CASE INFO

Client Name: _____

DoB: _____

Co-Defendants: _____

Complainant/Victims: _____

Client's Custody Status

☐ ROR

☐ Bail-Released

☐ Bail-Detained

☐ ICE Detainer / Involvement

Existing Offer and / or
Likely Disposition

e.g. please note if the ADA will only accept a certain charge weight/type, an OOP or SORA

(Include your best guess)

CLIENT CRIMINAL HISTORY

Does the fingerprint RAP sheet
include **ALL** arrests & dispositions?

☐ Yes (Including Out Of State) | ☐ No | ☐ No Fingerprint Yet

(If No, please detail the client's additional criminal history)

Details: _____

Check any of the following which may apply to your client / the underlying incident - whether or not referenced in the charges

☐ Domestic relation to victim	☐ Drug Use: (inc. marijuana) ☐ Past ☐ Current	☐ Mental health problems	☐ Alcohol Problem	☐ Child victim	None of These Apply: ☐
☐ Order of Protection / TOP <u>now</u> in place	☐ Possible <u>Violation</u> of an <u>existing</u> OP / TOP Alleged	☐ \$10k+ loss (for theft/fraud cases)	☐ Possible Gang involvement	☐ Child present during incident	

Details: _____

CLIENT INFORMATION & IMMIGRATION HISTORY

Provide as much detail as possible for all fields. If your client does not know the answer, please say so:

Client's level of English: ☐ Read & Write ☐ Spoken Only ☐ Interpretation Needed Language: _____

Country of Birth: _____ USCIS / Alien Number (9 digits): _____
Note: This is not the same as a 10 digit SSN

Initial Entry To U.S.: Status: _____ Date: _____
e.g. Illegal entry | Refugee | Green card | F-1 student visa (For work permits, we need the code - e.g. C08 or A12)

Current Immigration Status: Status: _____ Date: _____
e.g. Illegal entry | Refugee | Green card | F-1 student visa (For work permits, we need the code - e.g. C08 or A12)

Pending / Imminent Immigration Application(s)? ☐ N ☐ Y: _____
Name of form or description (e.g. N400, adjustment of status, I-485)

Please check if your client has any immediate family members who are either lawful permanent residents or U.S. citizens

<u>Children</u>	<u>Spouse</u> <i>(legal marriage, not common law)</i>	<u>Parents</u>	<u>None of These Apply:</u>
Over 21: ☐ Green Card ☐ US Citizen		☐ Green Card	
Under 21: ☐ Green Card ☐ US Citizen	☐ Green Card ☐ US Citizen	☐ US Citizen	☐

Please check all of the following which may apply to your client:

☐ Is in immigration court proceedings	☐ Immigration/ICE may be aware of client	☐ Has an immigration attorney (provide details)	☐ Willing to cooperate with law enforcement	None of These Apply: ☐
☐ Previously ordered removed / deported	☐ Has ever been arrested by Immigration/ICE	☐ Fears persecution or torture if deported	☐ Needs to travel before this case is resolved	
☐ May be victim of domestic violence	☐ May be victim of trafficking	☐ Has been the victim of a serious crime	☐ Does not care about being deported	

Details: _____

STEP 3: BEFORE YOU RECEIVE RIAC ADVICE:

- If your client is subject to an **order of protection**, immediately review the [RIAC Advisory on Domestic OP's](#).
- If there is an ICE detainer / **your client is likely to be arrested by ICE** (whether in Court, upon release from Jail or at home) immediately review the [RIAC Advisory on steps to take](#).
- DO NOT **accept any plea** OR **enter any diversion program** (even a seemingly amazing one, including an up-front plea which will be vacated). See the [RIAC advisory on diversion and up front pleas](#).
- DO NOT advise your client **accept an ACD** (unless you have first reviewed [the RIAC ACD advisory](#) with your client).
- DO NOT **use a court interpreter outside of Court: that conversation is not privileged!** You have access to telephonic interpretation. See, the [RIAC advisory on interpretation](#) / contact RIAC directly if you need assistance).
- DO NOT **ask your client to contact RIAC directly** – we are your legal expert, not your client's immigration attorney.
- **Advise your client of their right TO REFUSE TO SPEAK WITH ICE, even just to confirm their name.** See, "Know Your Rights with ICE" flyers in [English](#) and [Spanish](#) (contact us for additional languages).